

The Repealing and Amending (Second) Act, 2017

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Union of India - Act

The Repealing and Amending (Second) Act, 2017

UNION OF INDIA

India

The Repealing and Amending (Second) Act, 2017

Act 4 of 2018

Published on 5 January 2018

Commenced on 5 January 2018

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The Repealing and Amending (Second) Act, 2017

(Act

No. 4 of 2018

)

[Dated 5th January, 2018]

Ministry of Law and Justice

(Legislative Department)

The following Act of Parliament received the assent of the President on the 5th January, 2018, and is hereby published for general information:-

An Act to repeal certain enactments and to amend certain other enactments.

Be it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:-

1.

Short title.

- This Act may be called the Repealing and Amending (Second) Act, 2017.

2.

Repeal of certain enactments.

- The enactments specified in the First Schedule are hereby repealed.

3.

Amendment of certain enactments.

- The enactments specified in the Second Schedule are hereby amended to the extent and in the manner mentioned in the fourth column thereof.

4.

Savings.

- The repeal by this Act of any enactment shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this Act affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

The First Schedule

(See section 2)

Repeals

Year

Act No.

Short title

1

2

3

Central Acts

1850

XXI

The Caste Disabilities Removal Act, 1850.

1857

VII

The Madras Uncovenanted Officers Act, 1857.

1857

XXI

The Howrah Offences Act, 1857.

1859

XII

The Calcutta Pilots Act, 1859.

1862

III

The Government Seal Act, 1862.

1873

XVI

The North-Western Provinces Village and Road
Police Act, 1873.

1875

XX

The Central Provinces Laws Act, 1875.

1876

XIX

The Dramatic Performances Act, 1876.

1879

XIV

The Hackney-carriage Act, 1879.

1879

XIX

The Raipur and Khattra Laws Act, 1879.

1881

XIII

The Fort William Act, 1881.

1882

XXI

The Madras Forest (Validation) Act, 1882.

1883

X

The Bikrama Singh's Estates Act, 1883.

1886

XXI

The Oudh Wasikas Act, 1886.

1888

III

The Police Act, 1888.

1888

VIII

The Indian Tolls Act, 1888.

1893

II

The Porahat Estate Act, 1893.

1895

XV

The Government Grants Act, 1895.

1897

VIII

The Reformatory Schools Act, 1897.

1911

X

The Prevention of Seditious Meetings Act, 1911.

1912

VII

The Bengal, Bihar and Orissa and Assam Laws
Act, 1912.

1917

XXV

The Sir Currimbhoy Ebrahim Baronetcy

(Amendment) Act, 1917.

1921

XVII

The Cattle-trespass (Amendment) Act, 1921.

1931

XX

The Sheriff of Calcutta (Powers of Custody)

Act, 1931.

1932

XI

The Public Suits Validation Act, 1932.

1932

XXIV

The Bengal Suppression of Terrorist Outrages

(Supplementary) Act, 1932.

1938

XX

The Criminal Law Amendment Act, 1938.

1941

IV

The Berar Laws Act, 1941.

1942

XVIII

The Weekly Holidays Act, 1942.

1943

XXIII

The War Injuries (Compensation Insurance) Act,

1943.

1947

XVI

The Trading with the Enemy (Continuance of

Emergency Provisions) Act, 1947.

1948

26

The Junagadh Administration (Property) Act,

1948.

1949

51

The Requisitioned Land (Apportionment of

Compensation) Act, 1949.

1949

61

The Professions Tax Limitation (Amendment and

Validation) Act, 1949.

1950

IV

The Preventive Detention Act, 1950.

1950

L

The Preventive Detention (Amendment) Act, 1950.

1950

67

The Cooch-Behar (Assimilation of Laws) Act,
1950.

1951

3

The Part B States (Laws) Act, 1951.

1951

IV

The Preventive Detention (Amendment) Act, 1951.

1951

51

The Railway Companies (Emergency Provisions)
Act, 1951.

1951

66

The Part C States (Miscellaneous Laws)
Repealing Act, 1951.

1951

70

The Displaced Persons (Debts Adjustment) Act,
1951.

1952

1

The Part B States Marriages Validating Act,
1952.

1952

XXXIV

The Preventive Detention (Amendment) Act, 1952.

1952

LXI

The Preventive Detention (Second Amendment)
Act, 1952.

1954

4

The Abducted Persons (Recovery and Restoration)
Amendment Act, 1954.

1954

7

The Government of Part C States (Amendment)
Act, 1954.

1954

15

The Transfer of Evacuee Deposits Act, 1954.

1954

20

The Absorbed Areas (Laws) Act, 1954.

1954

36

The Chandernagore (Merger) Act, 1954.

1954

51

The Preventive Detention (Amendment) Act, 1954.
1955
19
The Commanders-in-Chief (Change in Designation)
Act, 1955.
1955
30
The Abducted Persons (Recovery and Restoration)
Continuance Act, 1955.
1956
4
The Bar Councils (Validation of State Laws)
Act, 1956.
1956
50
The Indian Cotton Cess (Amendment) Act, 1956.
1956
65
The Abducted Persons (Recovery and Restoration)
Continuance Act, 1956.
1956
88
The Representation of the People (Miscellaneous
Provisions) Act, 1956.
1956
97
The Delhi Tenants (Temporary Protection) Act,
1956.
1957
32
The Forward Contracts (Regulation) Amendment
Act, 1957.
1957
37
The Legislative Councils Act, 1957.
1957
54
The Preventive Detention (Continuance) Act,
1957.
1959
24
The Pharmacy (Amendment) Act, 1959.
1960
31
The Tripura Municipal Law (Repeal) Act, 1960.
1960
47
The Bilaspur Commercial Corporation (Repeal)
Act, 1960.
1960
48

The Mahendra Pratab Singh Estates (Repeal) Act,
1960.
1960
53
The Tripura Excise Law (Repeal) Act, 1960.
1962
62
The Emergency Risks (Goods) Insurance Act,
1962.
1962
63
The Emergency Risks (Factories) Insurance Act,
1962.
1963
29
The Institutes of Technology (Amendment) Act,
1963.
1963
56
The Delhi Development (Amendment) Act, 1963.
1964
23
The Delhi (Delegation of Powers) Act, 1964.
1965
50
The Goa, Daman and Diu (Absorbed Employees)
Act, 1965.
1967
16
The Anti-Corruption Laws (Amendment) Act, 1967.
1969
41
The International Monetary Fund and Bank
(Amendment) Act, 1969.
1971
65
The Asian Refractories Limited (Acquisition of
Undertaking) Act, 1971.
1971
68
The Uttar Pradesh Cantonments (Control of Rent
and Eviction) (Repeal) Act, 1971.
1972
36
The Coking Coal Mines (Nationalisation) Act,
1972.
1973
26
The Coal Mines (Nationalisation) Act, 1973.
1975
19

The All-India Services Regulations (Indemnity) Act, 1975.
1976
22
The Assam Sillimanite Limited (Acquisition and Transfer of Refractory Plant) Act, 1976.
1976
28
The Parliamentary Proceedings (Protection of Publication) Repeal Act, 1976.
1976
76
The National Library of India Act, 1976.
1976
89
The Indian Iron and Steel Company (Acquisition of Shares) Act, 1976.
1976
96
The Braithwaite and Company (India) Limited (Acquisition and Transfer of Undertakings) Act, 1976.
1977
16
The Disputed Elections (Prime Minister and Speaker) Act, 1977.
1977
41
The Smith, Stainstreet and Company Limited (Acquisition and Transfer of Undertakings) Act, 1977.
1977
42
The Gresham and Craven of India (Private) Limited (Acquisition and Transfer of Undertakings) Act, 1977.
1978
13
The Hindustan Tractors Limited (Acquisition and Transfer of Undertakings) Act, 1978.
1978
42
The Bolani Ores Limited (Acquisition of Shares) and Miscellaneous Provisions Act, 1978.
1979
12
The Punjab Excise (Delhi Amendment) Act, 1979.
1980
58
The Bengal Chemical and Pharmaceutical Works Limited (Acquisition and Transfer of Undertakings) Act, 1980.
1983
35
The Dangerous Machines (Regulation) Act, 1983.

1984

39

The Punjab Municipal (New Delhi Amendment) Act,

1984.

1984

43

The Aluminium Corporation of India Limited

(Acquisition and Transfer of Aluminium Undertaking) Act, 1984.

1984

57

The Bengal Immunity Company Limited

(Acquisition and Transfer of Undertakings) Act, 1984.

1985

80

The Customs (Amendment) Act, 1985.

1987

36

The Brentford Electric (India) Limited

(Acquisition and Transfer of Undertakings) Act, 1987.

1993

24

The National Thermal Power Corporation Limited,

the National Hydroelectric Power Corporation Limited and the

North-Eastern Electric Power Corporation Limited (Acquisition
and Transfer of Power Transmission Systems) Act, 1993.

1994

56

The Neyveli Lignite Corporation Limited

(Acquisition and Transfer of Power Transmission System) Act,
1994.

1999

6

The Delhi Development Authority (Validation of
Disciplinary Powers) Act, 1998.

1999

8

The Customs (Amendment) Act, 1998.

1999

49

The Copyright (Amendment) Act, 1999.

2000

20

The Direct-tax Laws (Miscellaneous) Repeal Act,

2000.

2000

48

The Forfeiture (Repeal) Act, 2000.

2001

33

The Influx from Pakistan (Control) Repealing
(Repeal) Act, 2001.

2001

36

The Indian Universities (Repeal) Act, 2001.

2001

37

The Auroville (Emergency Provisions) Repeal Act, 2001.

2001

41

The Central Sales Tax (Amendment) Act, 2001.

2001

47

The Two-Member Constituencies (Abolition) and other Laws Repeal Act, 2001.

2002

57

The Mysore State Legislature (Delegation of Powers) Repeal Act, 2002.

2002

65

The Countess of Dufferin's Fund (Repeal) Act, 2002.

2002

66

The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Repeal Act, 2002.

2002

70

The Refugee Relief Taxes (Abolition) Repeal Act, 2002.

2003

2

The Cable Television Networks (Regulation) Amendment Act, 2002.

2005

38

The Displaced Persons Claims and other Laws Repeal Act, 2005.

2005

44

The Immigration (Carriers' Liability) Amendment Act, 2005.

2006

3

The Central Sales Tax (Amendment) Act, 2005.

2006

18

The National Commission for Minority Educational Institutions (Amendment) Act, 2006.

2006

24

The Cess Laws (Repealing and Amending) Act,
2006.

2006

29

The Taxation Laws (Amendment) Act, 2006.

2006

32

The Spirituous Preparations (Inter-State Trade
and Commerce) Control (Repeal) Act, 2006.

2006

46

The Produce Cess Laws (Abolition) Act, 2006.

2006

49

The Indian Rifles (Repeal) Act, 2006.

2007

24

The Mizoram University (Amendment) Act, 2007.

2007

39

The Competition (Amendment) Act, 2007.

2008

25

The Central Universities Laws (Amendment) Act,
2008.

2009

39

The Competition (Amendment) Act, 2009.

2010

20

The National Commission for Minority
Educational Institutions (Amendment) Act, 2010.

2010

33

The Jharkhand Panchayat Raj (Amendment) Act,
2010.

2012

27

The Copyright (Amendment) Act, 2012.

2012

31

The Central Educational Institutions
(Reservation in Admission) Amendment Act, 2012.

Ordinances made by the Governor-General

1941

VII

The War Injuries Ordinance, 1941.

1942

XX

The Collective Fines Ordinance, 1942.

1942

XLI

The Armed Forces (Special Powers) Ordinance,
1942.

1944

XXI

The Public Health (Emergency Provisions)
Ordinance, 1944.

1945

XXIV

The War Gratuities (Income-tax Exemption)
Ordinance, 1945.

1945

XXX

The Secunderabad Marriage Validating Ordinance,
1945.

1946

II

The Bank Notes (Declaration of Holdings)
Ordinance, 1946.

1946

VI

The Criminal Law Amendment Ordinance, 1946.
1946

X

The Termination of War (Definition) Ordinance,
1946.

The Second Schedule
(See section 3)

Amendments

Year

Act No.

Short title

Amendments

1

2

3

4

1951

69

The Plantations Labour Act, 1951

In section 43, sub-section (4) shall be
omitted.

2016

2

The Juvenile Justice (Care and Protection of
the Children) Act, 2015

In section 69, in sub-section (2), for words,
brackets and letters "mentioned at (d) to (f)", the
words, brackets, letters and figure "mentioned at clauses
(d) to (f) of sub-section (1)" shall be substituted.

2016

49

The Rights of Persons with Disabilities Act,
2016

In section 76, after the word, brackets and
letter, "clause (b)", the words, brackets and figure
"of sub-section (1)" shall be inserted.

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